

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO**

Civil Action No. 06-cv-01016-EWN-CBS

ARTHUR JAMES LOMAX,

Plaintiff,

v.

SGT. CRAIG PENSON

Defendant.

VERDICT

WE THE JURY, in the above-captioned action, render our verdict in response to the following interrogatories:

1: Due Process

Question 1: Did Mr. Lomax prove by a preponderance of the evidence that the use of the taser by Denver Sheriff Department Deputies, was excessive because it was not reasonably necessary to restore order or maintain discipline?

____ YES

☒ NO

If your answer is "NO" you should skip the remaining questions and proceed to

Certification B. If your answer is "YES", proceed to answer Question 2.

Question 2: Did Sergeant Penson prove by a preponderance of the evidence that he is not liable to Mr. Lomax because he is entitled to qualified immunity?

_____ YES _____ NO

II. Damages

Answer the following questions only if you have found a verdict in favor of Mr. Lomax on the above claim against Sergeant Penson (by answering yes to Question 1 AND no to Question 2). Otherwise, , do not answer the following damages questions and proceed directly to Certification B.

Question 1: Do you find that Mr. Lomax has proven by a preponderance of the evidence that he has suffered damages caused by the unlawful conduct of Sergeant Penson you have found against?

_____ YES _____ NO

If your answer is "NO," do not answer Question 2, and proceed directly to the Certification section A. If your answer is "YES," proceed to answer Questions 2 and 3.

Question 2: What amount of damages, if any, is necessary to fairly compensate Mr. Lomax for the injuries caused by the unlawful conduct of Sergeant Penson you have found against?

\$ _____

Proceed to Question 3.

Question 3: Did Mr. Lomax prove by a preponderance of the evidence that the unlawful conduct by Sergeant Penson you have previously found against was extraordinary misconduct and that punitive damages are necessary to serve as an example or warning to others not to engage in such conduct.?

_____ YES _____ NO

CERTIFICATION A

If you found a verdict for the Plaintiff, sign and date the following section. Once you have done so, inform the Court by note that you are ready to return to the courtroom to announce your verdict.

By our signatures and our answers to these questions, we certify that we have found a verdict for Mr. Lomax, as indicated herein, and that the answers on this form represent the unanimous verdict of the jury.

Foreperson

Dated: November ___, 2007.

If your answer is “No”, you may not award punitive damages against that Defendant and proceed to the Certification A section. If your answer is “YES”, proceed to answer Question 4.

Question 4: What amount, if any, should be awarded to Mr. Lomax as punitive damages to punish Sergeant Penson and to set an example for others?

\$ _____

Proceed to Certification A if you have found a verdict in favor of Mr. Lomax.

CERTIFICATION B

If you found a verdict for Defendant, sign and date the following section.

Once you have done so, inform the Court by note that you are ready to return to the courtroom and announce your verdict.

By our signatures and our answers to these questions, we certify that we have found a verdict for the Defendant, and that the answers on this form represent the unanimous verdict of the jury.

JURORS' NAMES
REDACTED

Foreperson

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Dated: November 6, 2007.